

Gonzalez filed October 20, 2025 and the Cross-Complaint of Schlatter Realtors filed January 15, 2026 for indemnity.

2. The Court does not consider the late opposition by the Plaintiff and the reply brief filed by the City of Richmond and City of Richmond's Housing Authority.
3. The Court **sustains** the Demurrers of the City of Richmond and the City of Richmond's Housing Authority without leave to amend.
4. Counsel for the Richmond Defendants shall prepare and e-file a proposed order conforming to the foregoing ruling no later than five (5) days from the date of the hearing, and shall attach a copy of this tentative ruling.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

See Line 13.

15. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND NEIGHBORHOOD STABILIZATION CORPORATION
TENTATIVE RULING:

See line 13.

16. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
HEARING ON DEMURRER TO:
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Before the Court is a demurrer by General Motors LLC to Plaintiff's complaint. For the reasons set forth, the demurrer to the sixth cause of action is **overruled**. The Court imposes a monetary sanction of \$500 against the demurring party/moving party and its counsel for failure to meet and confer and file the meet and confer declaration pursuant to Code of Civil Procedure sections 430.41(a) and 435.5(a) as ordered by the Court in its February 18, 2026 tentative ruling and minute order. The sanction shall be paid to the Court within 30 days of this ruling.

Background

Plaintiff CTE Group filed a complaint against defendant General Motors LLC ("GM") alleging claims related to its purchase of a new 2023 Chevrolet Tahoe from Concord Chevrolet. (Compl. ¶¶ 5, 38.) CTE alleges that GM manufactures, sells and distributes Chevrolet vehicles, and that Concord Chevrolet is "certified" by GM to sell those vehicles. (Compl. ¶¶ 2, 6.) Plaintiff received written, express and implied warranties in connection from GM with its purchase of the vehicle. (Compl. ¶¶ 8, 9.)

Plaintiff alleges the vehicle was equipped with a 6.2L V8 engine which is known by GM to be predisposed to defects which impair its function and use. (Compl. ¶ 16.) Plaintiff alleges it made a